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Case Number: 26PSCV00368 Hearing Date: September 14, 2026 Dept: 6

CASE

NAME: Saed

Saad v. Jose Jesus Carrillo, et al.

1. Plaintiff

Saed Saad's Motion for Order Authorizing Service of Elite Roll Off LLC Through the California Secretary of State; and

2. Plaintiff

Saed Saad's Motion for Order Authorizing Service of Dida Dida First, Inc. Through the California Secretary of State

TENTATIVE

RULING

The

Court GRANTS Plaintiff's

Motion for Order Authorizing Service of Elite Roll Off LLC Through the California Secretary of State.

The Court GRANTS Plaintiff's Motion for Order Authorizing Service of Dida Dida First, Inc. Through the California Secretary of State.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an auto accident case. On January 30, 2026, plaintiff Saad Saad (Plaintiff) filed this action against defendants Jose Jesus Carrillo, Gregory Santana (Santana), Elite Roll Off LLC (Elite), David Tobias Navarrette, Dida Dida First, Inc. (Dida) (collectively, Defendants), and Does 1-50, alleging one cause of action for negligence.

On July 28, 2026, Plaintiff filed motions for orders authorizing service of Defendants Elite and Dida through the California Secretary of State. The motions are unopposed.

LEGAL STANDARD

(a) If an agent for the purpose of service of process has resigned and has not been replaced or if the agent designated cannot with reasonable diligence be found at the address designated for personally delivering the process, or if no agent has been designated, and it is shown by affidavit to the satisfaction of the court that process against a domestic corporation cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20 or subdivision (a) of Section 415.30 of the Code of Civil Procedure or upon the corporation in the manner provided in subdivision (a), (b), or (c) of Section 416.10 or subdivision (a) of Section 416.20 of the Code of Civil Procedure, the court may make an order that the service be made upon the corporation by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing such service. Service in this manner is deemed complete on the 10th day after delivery of the process to the Secretary of State.

...

(d) The court order pursuant to subdivision (a) that service of process be made upon the corporation by delivery to the Secretary of State may be a court order of a court of another state, or of any federal court if the suit, action, or proceeding has been filed in that court.

(Corp.
Code, § 1702, subds. (a), (d).)

If

an agent for service of process has resigned and has not been replaced or if the designated agent cannot with reasonable diligence be found at the address designated for personal delivery of the process, and it is shown by affidavit to the satisfaction of the court that process against a limited liability company or foreign limited liability company cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20, or subdivision (a) of Section 415.30 of the Code of Civil Procedure, the court may make an order that the service shall be made upon a domestic limited liability company or upon a registered foreign limited liability company by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing the service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State.

(Corp. Code,
§ 17701.16, subd. (c).)

DISCUSSION

Defendant Elite Roll Off LLC

Plaintiff moves under Corporations

Code section 1702, subdivision (a), for an order authorizing service of the summons and complaint on Defendant Elite Roll Off LLC through the California Secretary of State. Plaintiff contends that Elite's designated agent for service of process, Gregory Santana, cannot be located despite reasonable diligence. In support, Plaintiff submits process-server declarations describing three attempts at the agent's registered Downey address, where a resident reported that Santana did not live there, and a further attempt at a Bellflower address, where occupants reported that Santana had moved about two years earlier. Plaintiff argues these efforts exhausted every known address associated with the defendant and satisfy the diligence required before resort to the Secretary of State. Plaintiff therefore requests that the Court authorize service through the Secretary of State so the action may proceed.

The Court finds Plaintiff's motion persuasive.

The Court first notes, however, that the applicable code section is

Corporations Code section 17701.16, subdivision (c), since Elite is a limited liability company and not a corporation. (Corp. Code, § 17701.16, subd. (c).) Plaintiff's reliance on Corporations Code section 1702 is therefore misplaced but not fatal given the general similarities. (See *ibid.*; compare *id.*, § 1702.) Regardless, the Court finds Plaintiff has shown that Santana or Elite's designated agent cannot with reasonable diligence be found at the address designated for personal delivery or be served by hand with reasonable diligence. More specifically, Plaintiff has shown multiple attempts at different times of day and that the current residents at the Downey address associated with Elite's registered agent and the Bellflower address have affirmatively stated that Santana no longer resides at either address. (Corp. Code, § 17701.16, subd. (c); Albaryan Decl., ¶¶ 3-7, Exs. 1-2.) There appears to be no other address at which Plaintiff can reasonably attempt service on Santana or Elite's designated agent. Accordingly, Plaintiff appears to have exhausted the known avenues necessary for service on Elite via the Secretary of State. (Cf. *SoCal Lien Sols., LLC v. BDB Props.* (2025) 117 Cal.App.5th 788, 791 [service on Secretary of State under Corporations Code section 1702 is to be used as a "last resort" when the plaintiff cannot complete service despite reasonably diligent efforts].)

Based on the foregoing, the Court
GRANTS Plaintiff's
Motion for Order Authorizing Service of Elite Roll Off LLC Through the
California Secretary of State.

Defendant Dida Dida First, Inc.

Plaintiff moves under Corporations
Code section 1702, subdivision (a), for an order authorizing service on
Defendant Dida Dida First, Inc. through the California Secretary of
State. Plaintiff contends that Dida's designated agent, Zi Wang (Wang),
cannot be found with reasonable diligence at the address on file with the
Secretary of State, where service was attempted and the current occupant
disclaimed any knowledge of Wang. Plaintiff states having retained a
licensed investigator who conducted database, relative, open-source, DMV,
court-record, and inmate searches and dispatched registered process servers to
multiple California residences, all without success. Plaintiff further
represents that it attempted service through CT Corporation, which rejected the
documents as not the agent, and made three additional service attempts at a
Nevada address associated with the agent. Plaintiff argues that, having

exhausted every reasonable avenue, it has satisfied section 1702, subdivision (a), and that Secretary of State service is necessary to allow the action to proceed.

The Court finds Plaintiff's motion persuasive. Plaintiff demonstrated extensive efforts in attempting to locate and serve Wang on behalf of Dida (See SoCal Lien Sols., LLC v. BDB Props. (2025) 117 Cal.App.5th 788, 791 [service on Secretary of State under Corporations Code section 1702 is to be used as a "last resort" when the plaintiff cannot complete service despite reasonably diligent efforts].) The Court finds Plaintiff has shown that Wang or Dida's designated agent cannot with reasonable diligence be found at the address designated for personal delivery or be served by hand with reasonable diligence. More specifically, Plaintiff has shown multiple attempts at different times of day and at different locations. Accordingly, Plaintiff appears to have exhausted the known avenues necessary for service on Dida via the Secretary of State.

Based on the foregoing, the Court GRANTS Plaintiff's Motion for Order Authorizing Service of Dida Dida First, Inc. through the California Secretary of State.

CONCLUSION

The Court GRANTS Plaintiff's Motion for Order Authorizing Service of Elite Roll Off LLC Through the California Secretary of State.

The Court GRANTS Plaintiff's Motion for Order Authorizing Service of Dida Dida First, Inc. Through the California Secretary of State.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.